CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, June 26, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, June 26, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Commissioner Sherelean Bass, Commissioner Alvin Burke, and Commissioner Joseph L. Kelley. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Vice Mayor Chris Davis arrived at 7:04 p.m.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

A commendation was presented to Attorney Stephen Hunter-Johnson of Lydecker/Diaz Law Firm for taking the time to come and work pro bono on behalf of the City of Opa-locka.

A proclamation was presented in honor of Juneteenth (meaning June 19th) which is the official celebration date of the ending of slavery in the United States on June 19th, 1865.

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-3 (Commissioner Kelley).

7. APPROVAL OF AGENDA:

It was moved by Vice Mayor Davis, seconded by Commissioner Burke to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – May 22, 2019

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to approve the minutes from the Regular Commission Meeting of May 22, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

Regular Commission Meeting Minutes – June 12, 2019

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to approve the minutes from the Regular Commission Meeting of June 12, 2019.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara J. Jordan's office, District I, said he does not have anything for the commission at this time, but will take any concerns they may have back to the commissioner.

Commissioner Burke thanked Mr. Gardner for providing the information regarding the small business grants, it is appreciated.

Melonie Burke, Commissioner Jean Monestime's office, District II, said she does not have anything for the commission at this time, but will take any concerns they may have back to the commissioner.

Commissioner Kelley asked Ms. Burke to look into the mosquito issue in the City that falls under the commissioner's district.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Virginia Harris-Cook, 3114 NW 204th Lane, Miami Gardens, Florida, said after she complained about the drainage at the last meeting, it was cleared out. She thanked those involved for their contribution in rectifying the matter.

Eric Redmon, 2766 NW 131st Street, Opa-locka, Florida, gave Commissioner Kelley his condolences on the recent passing of his mother. He then went on to say he was told that documents are circulating about his past during his youth and is painting him in a bad light. He said those were things he had done when he was 18, 19, and 20 years old and he should not be held to that today. He asked the City not to outsource Code Enforcement as there is almost nothing left that the City is handling on behalf of the residents.

12. ACTION ITEMS:

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PURCHASE OFFICE FURNITURE FROM AN APPROVED FURNITURE VENDOR OF THE FLORIDA DEPARTMENT OF MANAGEMENT SERVICES IN AN AMOUNT NOT TO EXCEED SIX THOUSAND DOLLARS ($6,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by Attorney Norris-Weeks.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said the item says it is sponsored by the city manager, but it should be sponsored by the commission. He also said that the City is under oversight and should not be spending this kind of money at this time. The offices might need to be updated, but the money is not there and there are other things the money can be spent on to benefit the City.

Mayor Pigatt said when he came in office; he was not afforded the things that previous officials were able to obtain. The funds have been approved by the state and the commission offices and conference room should be presentable when handling City business and dealing with others. He asked the manager for clarity.

Acting City Manager Daughtrey said the mayor worded it properly and at this time he will take direction at their discretion.

Commissioner Kelley reiterated that the City is under a financial emergency and the commission should lead by example and keep in mind that the budget process is underway and the directors will be requesting things for their departments. Outfitting the offices is not important at this time.

A motion was made to amend the agenda to appoint someone to look through the vendor list and find a company to order the furniture from.

Commissioner Burke said the City just hired a procurement person to handle purchasing.

Mayor Pigatt agreed and requested the new employee handle the matter.

It was moved by Mayor Pigatt, seconded by Commissioner Burke to amend the resolution to appoint someone to look through the vendor list and find a company to order furniture from.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

There being no discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

The commission appointed Commissioner Bass to work with the procurement officer to order the furniture.

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER AND THE CHIEF OF POLICE TO EXECUTE A MUTUAL AIDE AGREEMENT WITH THE CITY OF SOUTH MIAMI, FLORIDA IN SUBSTANTIALLY THE SAME FORM ATTACHED HERETO AS EXHIBIT "A", FOR LAW ENFORCEMENT SERVICES AND RESOURCES EFFECTIVE THROUGH AND INCLUDING DECEMBER 31, 2022; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CLARIFYING BY RECLASSIFYING RESOLUTION NO. 19-9613 FROM AMENDMENT 3 TO AMENDMENT 2 PERTAINING TO AN AGREEMENT WITH ANTHONY BRUNSON, P.A. FOR THE PROVISION OF AUDIT SERVICES; AUTHORIZING THE CITY MANAGER TO EXECUTE AMENDMENT 3 WITH AUDITOR FOR THE EMERGENCY COMPLETION OF AUDIT SERVICES FOR THE FISCAL YEAR ENDING SEPTEMBER 30, 2017; PROVIDING FOR CORRECTION OF SCRIVERNER'S ERRORS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolutions were read by Attorney Norris-Weeks.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said they have been responding to the auditor general's report and have been working to resolve all of the issues. Specific policies and procedures will be put in place to comply with all of the concerns in the future. This report is a draft, but an official report will be provided of exactly what is needed for the City to come into compliance moving forward. He has been pushing for staff to get this done because they will be returning to the City in the future to observe if the new processes are being enforced.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Commissioner Kelley thanked all of the employees and departments for their well wishes on the passing of his mother. He is taking everything day by day and he knows his mother would want him to keep moving forward and that is what he is doing. The food distribution program was held on last Friday as scheduled and was cohosted by Commissioner Burke; Movie Night is the first Friday of every month and is held on the lawn of the historic city hall; and he is working on hosting the special needs book bag giveaway that will be held in August. He received an e-mail from the consultant who is working on the search for a city manager that the search had been extended at the discretion of the consultant. He asked for clarity on who authorized the consultant to arbitrarily make the decision of extending the search without direction from the commission.

City Attorney Norris-Weeks said she did look at the contract and it was not specific or addressed authority on who can make those kinds of decisions.

Commissioner Bass announced (inaudible), also there will be a book bag giveaway on July 27, 2019 from 1:00 p.m. – 5:00 p.m. that she will host along with the Parks and Recreation Department and Bold Women of Zion.

Commissioner Kelley said he was not clear on what the attorney said.

City Attorney Norris-Weeks reiterated that the agreement was not specific as to what the consultant could and could not do.

Commissioner Kelley said that the commission sets policy and not an outside person. He will be addressing this with the attorney so that moving forward, this will not happen.

Vice Mayor Davis said they had spoken with the consultant and the conversation was had about extending the deadline for the search prior to doing so.

Mayor Pigatt agreed and said he is pleased with the process and so far there are about forty five (45) applicants who have applied and are qualified for the position of city manager. He said that the Five Year Financial Recovery Plan will be presented in November if there are no delays. The auditor general's findings was shocking and he is concerned that the commission is not receiving accurate information from staff to make the decisions they are making on behalf of the City. He suggested a workshop to address all of the findings and take the necessary corrective actions for resolve. He said he goes around the City and as an individual he can see where little things can be done to beautify the area, but staff does not see it.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Commissioner Kelley to adjourn the meeting at 7:56 p.m.

MAYOR

ATTEST:

CITY CLERK